

Court No. - 34

Case :- WRIT - C No. - 41730 of 2010

Petitioner :- Badri Prasad

Respondent :- State Of U.P. Thru D.M. Aligarh And Anr.

Petitioner Counsel :- Amit Saxena, Umesh Vats

Respondent Counsel :- C.S.C.

Hon'ble Prakash Chandra Verma, J.

Hon'ble Ram Autar Singh, J.

The remedy sought in this writ petition can be gone into by the Consumer Grievance Redressal Forum under 7.10 of the Electricity Supply code. Therefore, the petitioner is relegated to make an application to the Consumer Grievance Redressal Forum.

Without expressing any opinion on merit we are not inclined to interfere in the matter involved in this writ petition, as disputed questions of fact are involved in this writ petition. With the aforesaid observations the writ petition is disposed of finally.

All the deposits made by the petitioner shall be adjusted by the Forum. The Forum shall also consider for restoration of the electricity of the petitioner after deposit of the amount as directed by the Forum in accordance with law.

Order Date :- 20.7.2010

ssm